

## 25STCV29481 25STCV29481

County: los-angeles

Division: Civil Law and Motion

Department: 508

Hearing date: 2026-07-13

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Case Number: 25STCV29481 Hearing Date: July 13, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department

508

BARRY

MIRMOTAHARI,

Plaintiff,

vs.

CLEARHETON,

LLC, et al.,

Defendants.

Case No.:

25STCV29481

Hearing Date:

July 13, 2026

Hearing

Time: 2:00 p.m.

[TENTATIVE]

ORDER RE:

DEFENDANT APERTO

PROPERTY MANAGEMENT, INC.'S DEMURRER TO PLAINTIFF'S COMPLAINT;

DEFENDANT APERTO

PROPERTY MANAGEMENT, INC.'S MOTION TO STRIKE PORTIONS  
OF PLAINTIFF'S COMPLAINT

Plaintiff Barry Mirmotahari ("Plaintiff")

filed this action on October 8, 2025 against Defendants Cleartheton, LLC and Aperto Property Management, Inc. ("Aperto") (jointly, "Defendants"), alleging twelve causes of action for (1) general negligence; (2) tortious breach of warranty of habitability; (3) breach of implied warranty of habitability; (4) breach of covenant of quiet enjoyment; (5) premises liability; (6) nuisance; (7) unfair business practice (Business & Professions Code §17200; (8) intentional infliction of emotional distress; (9) negligent infliction of emotional distress; (10) violation of Burbank municipal code; (11) illegal lockout; and (12) elder abuse – Welfare and Institutions code §15610.

On December 10, 2025, Aperto demurred to the eighth and twelfth causes of action of the complaint and moved to strike portions of the complaint relating to attorney fees, punitive damages, and fraud. Plaintiff opposes both. Aperto replied.

On

May 1, 2026, the Court ordered Aperto to meet and confer with Plaintiff within 10 days of the Order, and stated that "[i]f

the parties are unable to resolve the pleading issues, or if the parties are otherwise unable to meet and confer in good faith, Aperto is to thereafter file and serve a declaration setting forth the efforts to meet and confer in compliance with Code of Civil Procedure section 430.41, subdivision (a)(3) and Code of Civil Procedure section 435.5, subdivision (a)(3) within 15 days of this Order." (Order 5/1/26, 3:6-10.) The Court notes

that Aperto did not file a declaration.

Additionally, Plaintiff filed an amended complaint on May 15, 2026, and Defendants filed their answer on June 16, 2026.

Accordingly,

the demurrer and motion to strike are DENIED as MOOT.

Aperto is ordered to give notice of this Order.

DATED: July

13, 2026

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Hon. Teresa A.

Beaudet

Judge, Los

Angeles Superior Court